

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BOTSWANA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Botswana. The clearest proof comes from the sands of the Central Kalahari, where the San — the Basarwa, among the oldest peoples on Earth — were driven from their ancestral land. Between 1997 and 2005 the government forced more than a thousand San out of the **Central Kalahari Game Reserve**, capping their water borehole, cutting off food rations and hunting licences to make return impossible. But the San did not accept it. Backed by lawyers and an international campaign, they took their own government to court, and on **13 December 2006 the High Court ruled the eviction "unlawful and unconstitutional"** and held that they had the right to live on their ancestral land inside the reserve — one judge warning that cutting off food and hunting was "tantamount to condemning" them "to death by starvation." When the government then refused to let them reopen their capped borehole, they went back to court, and in **January 2011 the Court of Appeal ruled they could use their old well and sink new ones**, condemning the state's "degrading treatment." A people with almost no power beat one of Africa's most admired governments, in that government's own courts, because they organised, endured, and used the law. The reserve had been created in 1961, and the government began pressing the San out after diamonds were found there in the 1980s; the forced removals came in 1997, 2002, and 2005, and in 2002 the state capped the community's only borehole — a well originally sunk by the diamond company — to make life impossible. The 2006 judgment in *Roy Sesana and Others v Attorney General*, at the High Court in Lobatse, split the bench but came down for the San on the central points. Even so, only 189 of the 243 named applicants were allowed back, hunting required government licences, and services stayed withheld — which is why the community had to return to court over water, winning at the Court of Appeal in 2011 in *Mosethanyane and Others*. Their lawyer, Gordon Bennett, and international allies such as Survival International carried the fight to the world.

The Central Kalahari case teaches two things about winning in Botswana — including its hard limits, which this guide will not hide. The first is the pattern: not a single silver bullet, but the combination of every lever — the courts and the Constitution, the tribal-land system, community consultation, the environmental rules, mobilisation, and national and international attention — pressed for as long as it takes. The second is distinctly Botswana's. This is a stable democracy with an unusually **independent and respected judiciary**, and its land is mostly **tribal land** held in trust and administered by **Land Boards**, with a living tradition of community deliberation in the **kgotla**. Those three things — real courts, community-held land, and a genuine consultation forum — give Botswana communities levers that many of their neighbours lack.

Most communities, though, do not know HOW to make opposition effective. They grumble at the kgotla and go home. They assume the mine or the fence "is government business," and so they never demand a proper consultation, never scrutinise the Land Board allocation, never challenge the environmental authorisation, never take a rights violation to the High Court, never build the mobilisation that changes a decision. They generate a burst of frustration without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Botswana system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(the Land Board, consultation, the EIA, the courts)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a court case is a headline and a

headline strengthens a case. The community that runs all five together, each reinforcing the others, is the one that wins. The San of the Central Kalahari did exactly this — they documented their ancestral occupation, organised and endured over years, worked with lawyers to reach the High Court and the Court of Appeal, and made a remote desert reserve a national and international cause, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Botswana's give communities a distinctive set:

- **Independent courts.** Botswana's **High Court** and **Court of Appeal** are genuinely independent and respected, and they have ruled against the government on constitutional grounds — the lever that won the Central Kalahari case twice.
- **Tribal land and the Land Boards.** Most of Botswana's land is **tribal land**, held in trust for communities and allocated by **Land Boards** under the Tribal Land Act — so a project usually needs a lawful land allocation that a community can scrutinise and challenge.
- **The kgotla.** The traditional community assembly is a real and respected forum for consultation and decision, presided over by the **kgosi** (chief), and government is expected to consult communities through it.
- **Environmental assessment.** Major projects require an **environmental impact assessment** under the Environmental Assessment Act, with public consultation — a formal entry point for evidence and objection.
- **A reputation to protect.** Botswana prizes its image as a stable, law-governed democracy and depends on diamonds and high-value tourism, both sensitive to international scrutiny.
- **The African human-rights system.** As a party to the African Charter, Botswana is answerable to the African Commission on Human and Peoples' Rights.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. The Central Kalahari victory was **real but narrowly enforced**: the government read the ruling to cover only the named applicants, kept services withheld, forced a second case just to restore water, and a **diamond mine was later developed inside the reserve** anyway. Botswana's economy runs on **diamonds**, and the state guards mining and "development" closely. The government has long **denied that the San are "Indigenous"** and has **not ratified ILO Convention 169**, so Indigenous-specific claims are weaker here than elsewhere — which is why the winning arguments lean on the Constitution and tribal-land law. And Land Boards can allocate land over the heads of customary users. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Botswana development project runs through several tracks at once, and each is a place to intervene.

The land. Most land in Botswana is **tribal land**, held in trust for the community and allocated by the district **Land Board** under the Tribal Land Act; the rest is state land or (a small share) freehold. A project on tribal land generally needs a **Land Board allocation or lease**, and how that allocation was made — over what existing customary rights, with what consultation — is often the weakest point.

Consultation and the kgotla. Government and developers are expected to consult affected communities, and the **kgotla** — the community assembly under the kgosi — is the traditional and respected forum for that. A consultation that never truly happened, or that ignored the kgotla, is a real vulnerability. The kgotla is not a mere formality: it is the community's public assembly, presided over by the kgosi, where matters are debated openly and a community position is formed, and it sits within a wider structure that runs up to the Ntlo ya Dikgosi, the national House of Chiefs, which advises Parliament on land, custom, and tribal matters. A developer or department that bypasses the kgotla, or stages one to rubber-stamp a decision already taken, has skipped a step the courts and the public both take seriously.

Environmental authorisation. A project likely to have significant environmental effects requires an **environmental impact assessment** under the **Environmental Assessment Act**, reviewed by the **Department of Environmental**

Affairs, with public consultation. This is a key permit and a formal objection point.

The courts. Botswana's **High Court** and **Court of Appeal** review the legality and constitutionality of decisions — the forum that decided the Central Kalahari case, and the ultimate check on an unlawful project.

The Journey of a Project

A typical project moves from a proposal, to the securing of **land** (a Land Board allocation), to **consultation** (properly, through the kgotla), to the **environmental authorisation**, into the **courts** if challenged, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: demanding a real kgotla consultation, scrutinising the Land Board allocation, objecting to the EIA. The later doors — judicial review, a constitutional case in the High Court — are more demanding but real, and communities walk through them and win, as the San did. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Land

Behind the project stand a proponent — often a mining company (Botswana is built on diamonds), a rancher, a tourism operator, or the government itself — its financiers and buyers, and the officials who allocated the land and licensed the project. Trace who owns and funds the proponent, who profits, and which Land Board and department approved it. Two questions unlock most Botswana fights: **Was it lawful — the land allocation, the consultation, the EIA — and were the impacts honestly assessed?** and **Who benefits from pretending they were?** Because diamonds and tourism carry Botswana's global reputation, the buyers, partners, and the government's image are often reachable pressure points. Diamonds are mined chiefly through Debswana, a partnership between the state and the global diamond industry, and the stones are sold into a world market increasingly sensitive to how they are produced; high-value tourism, likewise, sells an image of pristine wilderness and good governance. Both depend on a reputation that international scrutiny can put at risk, which is why a well-documented injustice can travel further, and land harder, than the size of the affected community alone would suggest.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **High Court** and **Court of Appeal** review legality and constitutionality. The **Office of the Ombudsman** examines maladministration. The **Auditor General** audits public money. The **Ntlo ya Dikgosi** (House of Chiefs) speaks for traditional communities on land and custom. And the **African Commission on Human and Peoples' Rights**, together with international organisations, watches Botswana's compliance with the rights it has promised to uphold. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the Land Board, the Department of Environmental Affairs, the High Court, the Ombudsman, the Ntlo ya Dikgosi, the African Commission, the diamond and tourism partners, and the press at once, and each front that opens makes the others harder to close. A Botswana campaign's power comes not from any single lever but from applying several at the same time — with the independent courts as the one that reaches furthest when a right is at stake.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Botswana and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the **land allocation or consultation was flawed**, whether the **EIA has real defects**, whether a **constitutional or customary right** is engaged (as at the Central Kalahari), whether the project is **diamond- or state-driven** (which stiffens official resolve), and whether the public and Botswana's reputation can be reached. Where a genuine legal defect meets an organised community and the courts, Botswana's levers are strong; where the paperwork is clean and diamonds or high politics are involved, discount the figures and think in terms of delay, conditions, exposure, and mobilisation.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5–10%	1–3 months	low	Basis for every other step
Demanding real kgotla consultation	20–45%	weeks–months	low	Consultation forced; project reshaped or stalled

Challenging the Land Board allocation	25-50%	months-years	low-moderate	Allocation questioned, conditioned, or overturned
Objection at the EIA consultation	15-35%	during review	low	On record; conditions; grounds
Judicial review of a decision	25-50%	6-24 months	low-moderate	Decision quashed or reconsidered
Constitutional case (High Court)	30-55%	1-4 years	moderate	Right vindicated; project barred (the CKGR lever)
Court of Appeal	25-50%	1-3 years	moderate	Decision overturned or upheld on appeal
Ombudsman / oversight complaint	20-40%	months	low	Maladministration found; pressure
Media & public campaign	30-55%	ongoing	low	Political and reputational cost raised
International / reputational pressure	25-50%	6-48 months	low	Buyers, partners, or funders respond
African Commission complaint	20-40%	years	low-moderate	Findings; pressure on the State
All steps combined (legal defect + rights)	45-65%	1-5 years	low-moderate	Stalled, conditioned, quashed, or stopped
All steps combined (clean process, diamond/state)	20-40%	1-5 years	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Botswana's real strengths are distinctive — **independent courts** and **constitutional litigation**, the **tribal-land and Land Board** system, the **kgotla** consultation forum, the **EIA** regime, a **reputation** the state protects, and the **African human-rights system**. Its constraints are a **diamond-driven state** that guards mining and development, **narrow and resisted enforcement** of even landmark wins, the government's **denial of San indigeneity** and non-ratification of ILO 169, and **Land Boards that can allocate over customary users**.

A note on cost: demanding a kgotla consultation, scrutinising a Land Board allocation, objecting to an EIA, and complaining to the Ombudsman are inexpensive. Litigation in the High Court costs more, but the Central Kalahari case shows what committed legal support — often with the help of public-interest lawyers and international organisations — can achieve for a community with almost nothing. The expenditure that most changes outcomes is that legal and technical support and the reach of the media and international attention, exactly what the San marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, conditioned, quashed, or stopped)

LEGAL DEFECT + RIGHTS ENGAGED -- flawed allocation/consultation/EIA, constitutional or customary right, community organised:

All steps combined: 45-65%
 Constitutional case (High Court): 30-55%
 Land Board / judicial review: 25-50%
 Kgotla consultation demand: 20-45%
 Single step: 5-55%

CLEAN PROCESS, DIAMOND/STATE-DRIVEN -- mining or high-politics project:

All steps combined: 20-40%
 Mobilisation + media + reputation: the strongest combination
 Delay / conditions: more achievable than an outright stop
 Single step: 5-40%

How to read this honestly. The levers that most change outcomes in Botswana are **the courts, the Land Board and consultation defects, and constitutional or customary rights** where they apply, and **the mobilisation, the media, and the reputational pressure** everywhere. The Central Kalahari shows both the ceiling and the limit: the San won twice in court — a genuine, historic victory — yet enforcement was narrow, services stayed cut, and a diamond mine still went ahead inside the reserve. The floor is set by a diamond-driven state that guards its projects. Most Botswana fights sit between them, and the honest lesson is that the courts, the land system, and rights are real and distinctive levers — but against a clean, state- or diamond-backed project, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright stop, and even a court win must be fought into reality. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that demands consultation, challenges the allocation, objects to the EIA, litigates where a right is engaged, and publicises at once consistently outperforms the one that pins its hopes on any single move.

Step Importance Ranking (When All Combined)

1. **The independent courts and constitutional litigation** — Botswana's decisive lever; the High Court and Court of Appeal that ruled for the San twice.
2. **The Land Board allocation and the kgotla consultation** — the land and consultation defects that most often give a project its legal weakness.
3. **The EIA and judicial review** — the environmental authorisation and the review of unlawful decisions.
4. **The mobilised, enduring community** — the Central Kalahari tradition of organising and holding on for years.
5. **Media and reputational pressure** — the coverage and international attention that reach a reputation-conscious state and its diamond and tourism partners.

What Botswana Campaigns Actually Show

A few patterns recur. **The courts can strike down an unlawful eviction** — the San won in the High Court in 2006 and the Court of Appeal in 2011. **Consultation and land process matter** — a flawed allocation or a skipped kgotla is a real vulnerability. **Reputation is a lever** — a state that prizes its image, and a diamond industry that sells to a values-conscious world, both respond to scrutiny a local objection cannot reach. **But even landmark wins are enforced narrowly**, the diamond-driven state guards its projects, mining proceeded inside the very reserve at issue regardless, and Indigenous-specific claims are weak in Botswana. The through-line: **demand a genuine kgotla consultation; scrutinise the Land Board allocation and the EIA; build the constitutional and customary-rights case; take a clear illegality to the High Court; mobilise the public and the country's reputation — and expect a long fight measured in delay, conditions, and exposure, and a win you must fight to enforce, as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the Land Board allocation and environmental authorisation granted over our customary land without the kgotla consultation the process requires, in breach of our constitutional rights" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and on whose land?** Name the project, the proponent, and — first — **whose land** it sits on. Is it **tribal land** (allocated by a Land Board, over what customary rights?), state land, or freehold? Then the specific instruments: the Land Board allocation or lease, the environmental authorisation, the mining or other licence. Each is a place a defect hides.
2. **What stage is it at?** Seeking a Land Board allocation? Consultation under way (or skipped)? EIA out for review? Authorisation granted? In the courts? Under construction? The stage dictates the door. If consultation or the EIA is live, demanding a real process and objecting are the routes now; if authorisations are granted, judicial review or a constitutional case is the route.
3. **Was there a genuine consultation — and a lawful land allocation?** This is often the decisive Botswana question. Was the community properly consulted through the **kgotla**, or was consultation a formality? Was the **Land Board allocation** lawful, and did it respect existing customary rights? A flawed consultation or allocation is frequently the strongest single ground.
4. **Are constitutional or customary rights engaged?** Does the project evict people, cut off their livelihood or water, or override customary land use — the kinds of harm the Central Kalahari rulings addressed under the Constitution? Where a fundamental right is engaged, the High Court is your strongest forum. It is worth being precise about which right: the Central Kalahari case did not turn on a special Indigenous status the government disputed, but on ordinary constitutional protections that belong to every person in Botswana — against being deprived of the means of life, and against degrading treatment. Framing the harm in those universal terms, rather than in contested Indigenous-rights language, is often the surer path in the Botswana courts.
5. **Who decides, who benefits, and who is watching?** Which Land Board and department decided; who owns, funds, and profits from the proponent (including diamond or tourism partners); which communities and leaders are affected; and which lawyers, oversight bodies, press, and international allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a mining company obtains a Land Board allocation and an environmental authorisation over community land, with the community claiming it was never properly consulted.

Working the five questions: the project sits on **tribal land** allocated by the **Land Board** — so how that allocation was made, and over what customary rights, is the first target. It has an **allocation and authorisation**, so demanding a real kgotla consultation and objecting to the EIA are live now, with judicial review and a constitutional case in reserve. If consultation was a **sham** and the project would **override customary land use or cut off livelihoods**, constitutional and customary-rights grounds open the **High Court**. The Land Board and department decided, so the **courts, the consultation, and the public** carry more weight than quiet complaint.

Within a weekend you have moved from "we oppose the mine" to a target list: demand a genuine kgotla consultation and document its absence; obtain and scrutinise the Land Board allocation and the EIA; object to the environmental authorisation; prepare judicial review and, where rights are engaged, a constitutional case; identify the diamond or tourism partners and the reputational angle; and prepare the land-and-livelihood story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse grievance into a short list of concrete, assignable tasks — demand the kgotla, get the allocation file, object to the EIA, ready the court case, map the partners — each tied to a specific lever and each of which can begin this week, several of them before any authorisation is final. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A High Court judge, a Land Board, a journalist, and a project's diamond or tourism partners all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **Land Board allocation or lease** and its file; the **environmental impact assessment and the authorisation** from the Department of Environmental Affairs; the **consultation record** (was there a kgotla, when, what was said and decided); and the **mining or project licence**. Much of this is obtainable from the Land Board, the department, and the district authorities, and through requests for the record. The gap between what the paper claims — a lawful allocation, an adequate assessment, a real consultation — and what actually happened is where cases are won. The Central Kalahari case turned on exactly this kind of proof: that the eviction and the cutting-off of water and food were unlawful and unconstitutional in their conduct and effect. Read the EIA and the allocation file against the grain, for what they quietly concede or omit — the water source treated as expendable, the grazing undercounted, the community's occupation unmentioned, the consultation logged as complete when it was a single announcement. These documents are written to justify the project; their silences and their overstatements are where your objection and, later, your court case take root.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual land** — the settlement, the water sources and boreholes, the grazing and gathering land, the graves and sacred places, the project footprint — and geotag it. Log **incidents**: an eviction, a capped or fenced borehole, cut services, works beyond the allocation. Capture **before-and-after** with your own photos and with freely available satellite imagery, to show clearing or the true scale. Record **the community's occupation and use** — where the community chooses to share it, its history on the land, its customary use of the water, the pasture, and the veld — because customary occupation is the heart of the land case. Record **testimony**: elders' accounts of the community's long presence and its customary rights, and residents' and independent experts' accounts of the harm.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the legal lines the project crosses. Was there **no genuine kgotla consultation**? Was the **Land Board allocation unlawful** — made without authority, over existing customary rights, or without the required process? Was the **EIA deficient** — understating the water, the grazing, the wildlife, the community? Does the project **evict people, cut off their water or livelihood, or override customary land use** in breach of the Constitution — the very harms the Central Kalahari rulings condemned? Each defect is a separate ground — for a

consultation demand, a challenge to the allocation, an objection to the EIA, judicial review, or a constitutional case — and together they make a case that is hard to wave away. This is the layer that most often decides Botswana fights, because here a project that looked authorised is revealed to rest on a sham consultation, an unlawful allocation, a whitewashed assessment, or a violation of fundamental rights. Work it methodically against each requirement: was there a genuine kgotla consultation; was the Land Board allocation made lawfully and over what customary rights; did the EIA honestly assess the water, the grazing, the wildlife, and the community; does the project evict, cut off water or livelihood, or override customary land in breach of the Constitution? Where the answer is no, capture the proof — because each 'no' is a separate ground the Land Board's structures, the department, or the courts can act on, and the constitutional grounds are the ones that beat the government before.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Botswana cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Land, the Permits, and Their Paper Trail

- **The Land Board allocation or lease** and its file — the application, the decision, the map, and whether existing customary rights were recognised. An allocation made without proper process or over occupied customary land is the classic ground.
- **The environmental impact assessment and the authorisation**, from the Department of Environmental Affairs. Read the EIA for what it understates — the water, the grazing, the wildlife, the affected community, the cumulative effects.
- **The consultation record** — evidence of whether a kgotla was held, when, who attended, and what was decided (or that it never truly happened).
- **The mining or project licence** and its conditions.
- **The customary-rights history** — the community's long occupation and use, mapped against the allocation and the footprint.

How to Get Them

Land records are held by the district **Land Board** and the Ministry responsible for land; environmental documents by the **Department of Environmental Affairs**; consultation records by the district authorities and the kgotla. Request them directly, and use any right of access to official information; a refusal is itself a documentable fact. Ask the **kgosi** and the kgotla for their own record of what was — or was not — consulted, because a chief's account of a missing or sham consultation is powerful evidence. Move early: objecting while the EIA is out for consultation, and challenging an allocation before the ground is cleared, carry far more weight than the same point raised later, and the time limits for **judicial review** and appeals are strict. A practical tip: put your requests in writing and keep dated proof of them, request the full file rather than a summary, and treat a refusal or a long silence not as a dead end but as a documentable fact — evidence that the process was closed to the very people it was meant to serve. Where the community's own leaders hold records of what was said at a kgotla, gather those too, because the community's account and the official account, side by side, often reveal the gap that becomes your case.

The Ground Evidence

- **Dated, geotagged photographs and video** of the land, the settlement, the water sources, the grazing, the graves, the works.
- **Satellite before-and-after** from freely available imagery, to show clearing, fencing, or the true extent.
- **The community's occupation and use** — where the community chooses to share it, its customary use of the land and water, its sacred and burial sites, mapped against the allocation and footprint; customary occupation is the heart of the case, as it was for the San.
- **Independent technical readings** — a hydrologist's, ecologist's, or rangeland expert's report, and an independent review of the EIA. Public-interest lawyers, universities, and international organisations can help source these.
- **Maps** overlaying the footprint on the community's land, the water sources, the grazing, and any reserve — a single map showing a mine or a fence over a community's water and pasture is worth pages of argument.
- **Testimony** — above all elders' accounts of the community's long presence and customary rights, and residents' and experts' accounts of the harm.

Organise It So It Persuades

Keep a **master timeline** of the allocation, the consultation, the EIA, the authorisation, and every incident and deadline — the spine of any court case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for years — the Central Kalahari cases spanned nearly a decade — the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step the San did best against overwhelming odds: a people who organised, worked with allies, and held on through eviction, thirst, and delay until the courts vindicated them twice.

Phase 1: The Core, and the Community's Own Leadership

Start with a small, committed core — five to fifteen people who will carry the work. Root it in the community's own structures: the **kgosi** and the **kgotla** are the legitimate voice of the community, and the strongest campaigns work through and support that leadership rather than around it. Where the affected people are a distinct community — San or otherwise — follow their lead and never presume to speak for them. This matters with particular care where a marginalised community is involved: its members know their land, their history, and their own institutions better than any outside ally, and a campaign that sidelines them — however well-meant — both wrongs the people it claims to serve and weakens the very evidence of customary occupation and community will on which the strongest case is built. Assign roles: documentation, legal liaison, land and consultation, media, community liaison, and coordination. Agree on the goal — a project stopped, an allocation overturned, a consultation forced, a right vindicated, conditions imposed — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **neighbouring communities and cattle posts, the dikgosi and the Ntlo ya Dikgosi, churches, students, and scientists**. Reach the **allies with capacity** — Botswana's public-interest lawyers and human-rights organisations; the regional and international bodies (as Survival International and others were for the San) whose reach amplifies a local fight and protects it; independent experts; and the campaigners who can reach the diamond and tourism partners and the country's reputation. The Central Kalahari campaign drew its power from exactly this breadth — an organised community joined to skilled lawyers and a global campaign — which is precisely the spread a winning campaign needs, especially against a well-resourced, reputation-conscious state.

A worked coalition example. Facing a mine on community land, the affected community and its kgosi lead; neighbouring communities and the Ntlo ya Dikgosi lend weight; public-interest lawyers prepare the constitutional case; a hydrologist documents the harm to water; and an international organisation raises the profile and reaches the diamond buyers. No single group could have carried it; together they cover the land and consultation case, the law, the science, the community legitimacy, and the national and international reach — the Central Kalahari model.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat — and in Botswana they must sometimes outlast a state that resists even a court order. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a kgotla that holds firm, a document pried loose, a defect in the EIA exposed, a hearing won. Rotate the exhausting roles. And protect people: keep leadership collective and visible; document any intimidation or pressure; build strong links to lawyers, the Ombudsman, the press, and national and international networks; and take legal advice before any risky action. Sustaining a campaign — as the San's near-decade shows — is how these fights are won, and the ones that endure pace themselves. Build in the things that keep people together through a fight that may run for years and then continue through a hard enforcement struggle: welcome newcomers, share food, mark the small victories, root the campaign in the kgotla and the community's own life, and never let a leader stand alone. The Central Kalahari fight lasted the better part of a decade in court and longer in its aftermath — the movements that endure that long are the ones whose members carry the cause as part of who they are.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for the kgotla, the EIA consultation, and public meetings. Speak with one voice through the community's leadership. Hold peaceful, well-documented gatherings that make the fight a national and international story — the San's dignified, determined stand, carried by their lawyers and allies into the courtroom and the world's press, is the model. Be clear-eyed about legal risk and take advice, particularly where a community's defence of its land could expose it to removal or charges. The point is not spectacle; it is to demonstrate, to the Land Board, the department, the courts, the partners, and the public, that the community is rooted, organised, and not going away. A community that speaks with one voice through its kgotla and its kgosi, and that can turn people out and document its own unity, is far harder for an authority to dismiss as a handful of malcontents — and far more credible when it says, as the San in effect did, that it will pursue every lawful avenue for as long as it takes.

STEP 4: LEGAL CHALLENGES — THE LAND BOARD, CONSULTATION, THE EIA, AND THE COURTS

Botswana's law gives communities a real arsenal, and you do not need a final ruling to win with it: a consultation demand, a challenge to an allocation, an EIA objection, or a court case delays a project, forces disclosure, and creates leverage and headlines. Engage public-interest lawyers early — but understand the tools yourself.

The Kgotla Consultation and the Land Board

The first levers are the land and consultation process. Government and developers are expected to **consult affected communities through the kgotla**, and a consultation that never truly happened, or that ignored the community's decision, is a real vulnerability — both politically and, often, legally. And because most land is **tribal land allocated by a Land Board** under the Tribal Land Act, the **allocation itself can be scrutinised and challenged**: was it made with authority and proper process, and did it respect existing customary rights? An allocation made unlawfully, or over occupied customary land, can be questioned before the Land Board's own structures and, ultimately, the courts. These are the cheapest, earliest, and often strongest points of attack. It helps to understand the system: under the Tribal Land Act, tribal land is held in trust for the benefit of the community and administered by the district Land Board, which grants both customary rights (for grazing, dwelling, and cultivation) and common-law leases (for commercial and industrial use). A community that knows how its land is held, and what the Land Board may and may not lawfully allocate over existing customary rights, is far harder to displace than one that assumes the land is simply the government's to give away.

The Environmental Assessment

A project likely to have significant environmental effects requires an **environmental impact assessment** under the **Environmental Assessment Act**, reviewed by the **Department of Environmental Affairs**, with public consultation. Object substantively while the assessment is open: a deficient EIA — understating the water, the grazing, the wildlife, or the community, or resting on a consultation that was a formality — is a ground to demand refusal or conditions, and to challenge the authorisation later. Put your strongest evidence, especially on water and livelihoods, on the record while the window is open. The Environmental Assessment Act requires that prescribed projects be assessed for their impacts before they proceed, with an opportunity for the public and affected communities to comment, and that the authorising decision take those impacts into account. A study that was never genuinely opened to the affected community, or that treats a fragile desert water source or a community's grazing as an afterthought, is both a ground of objection and, later, a basis to challenge the authorisation in court.

Judicial Review and the Constitutional Case

Botswana's decisive lever is its **independent courts**. Two routes matter. **Judicial review** in the **High Court** challenges an unlawful administrative decision — an allocation, an authorisation, or a consultation — as beyond power, procedurally unfair, or unreasonable. And a **constitutional case** challenges a project that violates fundamental rights — the route the San took, where the High Court in 2006 found the eviction and the cutting-off of livelihood "unlawful and unconstitutional," and the Court of Appeal in 2011 restored the right to water. Because Botswana's judiciary is genuinely independent, these are real remedies that have beaten the government before. Botswana has, since independence, maintained a reputation for the rule of law that is rare in the region: judges have decided high-profile cases against the government of the day and had those rulings obeyed, and the Court of Appeal sits as a genuine second check. That independence is precisely what made the Central Kalahari litigation possible — a community of a few hundred hunter-gatherers could take the state to court and be heard on the merits, and win. They can be slow and, as the San learned, narrowly enforced — so they are run alongside the other fronts, not relied on alone.

The Reputation, the Region, and the Enforcement Fight

Two further realities shape the arsenal. First, because Botswana guards its reputation and depends on **diamonds and high-value tourism**, pressure on the **buyers, partners, and the country's image** — showing a project rests on a sham consultation, an unlawful allocation, or a rights violation — reaches the state where the domestic process may not. Second, and hard-won from the Central Kalahari: **a court win is not the end**. The government read the 2006 ruling narrowly and had to be taken back to court over water; so plan from the start to **fight the ruling into reality** — through follow-up litigation, the Ombudsman, the press, the African Commission, and sustained pressure — because in Botswana the enforcement of a victory can be as hard as winning it. Build that reality into the strategy from day one: keep the community organised and the coalition intact after the judgment, not just before it; be ready to return to court, as the San did over water, if the ruling is read too narrowly; and keep the press, the oversight bodies, and the international allies engaged through the aftermath, so that a government tempted to honour a ruling in name only knows the watching will not stop when the courtroom empties.

Where to Turn and With Whom

Consultation and allocation challenges start with the **Land Board** and district structures; EIA objections go to the **Department of Environmental Affairs**; judicial review and constitutional cases go to the **High Court** and, on appeal, the **Court of Appeal**; maladministration to the **Ombudsman**; and rights violations, ultimately, to the **African Commission**. Get help early: Botswana's public-interest lawyers and human-rights organisations, and international allies, know exactly these procedures and can advise on standing, the strict time limits, the strongest ground, and how to support a distinct community's case. Lawyers engaged while consultation and the EIA are live, and before deadlines lapse, are worth far more than help sought after the machinery arrives.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a High Court judge, a Land Board, an environmental official, a journalist, a diamond buyer, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mine was authorised on community land through a Land Board allocation, without a real kgotla consultation, and would cut off the community's only water. That one fact becomes:

- **A constitutional argument:** cutting off a community's water and overriding its land violates fundamental rights — the ground on which the San won.
- **A land-law argument:** the Land Board allocation was made without proper process or over existing customary rights, and can be challenged.
- **A consultation argument:** the community was never genuinely consulted through the kgotla, as the process requires — a defect in the decision.
- **A media argument:** a community cut off from its water so a mine can proceed, with no real consultation — a clear, human story with echoes of the Central Kalahari.
- **A reputational argument:** a diamond or tourism project resting on a sham consultation and a rights violation is a liability to its partners and to Botswana's carefully guarded image.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Botswana the arguments that most often decide things are the **constitutional and consultation ones**, because they reach the independent courts, and the **reputational one**, because a state that prizes its image feels it. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the court file and a claim made to the court can be spoken plainly at the kgotla; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the constitutional right for the court, the customary occupation for the Land Board and the kgotla, the reputational risk for the diamond partner, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The courts want the illegality framed precisely against the specific rule — the Constitution, the Tribal Land Act, the Environmental Assessment Act, the duty to consult — with the documents and the timeline that prove it.

The Land Board and the department respond to legal risk and their own mandates — the flawed allocation, the deficient EIA, the missing consultation, the exposure to review.

Journalists need a specific, verified, human story with a hook: a named community, an ancestral land, a cut-off water source, a documented defect, a live decision.

Diamond and tourism buyers and partners respond to legal and reputational exposure — a project tainted by a sham consultation and a rights violation, tied to a named company and to Botswana's image.

The community itself needs to see that the fight is winnable and shared — the small wins, the movement holding, the case advancing — so it lasts through the years and the hard enforcement fight these cases take.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a project, reaches officials and ministers, reaches the diamond and tourism partners your letters cannot, protects activists by making them visible, and can turn a local fight into a national and international cause. The Central Kalahari proved it: the global attention to the San's stand — the images of a people cut off from water in their own desert — put Botswana's guarded reputation on the line and kept the pressure on through years of litigation and its hard aftermath.

Build the Story

Reporters need specifics: a named place and people, a dated and documented harm, a clear stake, and a live decision or deadline. "A project threatens a community" is not a story; "a mine was authorised over a community's land without a real consultation, and would cut off the only water in the desert" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a kgosi or community leader where the people choose to speak, an elder, a lawyer — and a striking image, as the San's stand became.

Reach the Right Outlets

Work outward in rings. **Local and regional media** first, where the project is felt. Then **national outlets** — Botswana's newspapers and broadcasters, and its investigative press — which carry political weight. Then, because Botswana's diamonds and tourism carry its global brand, **international and financial media**, which reach the buyers, the partners, and the world; the San's case became a global story precisely because it touched Botswana's image and De Beers's. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **reputation and the partners**, because a state and an industry that prize their image respond to scrutiny a local objection never reaches. It is worth identifying the specific reporters at Botswana's national papers who cover land, mining, and rights, and the international correspondents and supply-chain investigators who follow the diamond trade; a journalist who already knows the terrain needs less briefing and carries more weight, and a single well-sourced investigation into a community cut off from its land or water can move a minister or a diamond buyer more than a month of statements. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions — and in Botswana the drumbeat must sometimes carry through the long aftermath of a court win the government resists. Plan a sequence — the consultation, the allocation, the EIA, the court case, the enforcement fight, the action — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild — and note that in the Central Kalahari case the court declined to accept an unproven diamond-motive claim, a reminder to argue only what you can document. Follow the affected community's lead on how its story and knowledge are told. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you demand, object, create a record, and reach the bodies that can act. Each does

double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Demand for a Proper Kgotla Consultation

To: the district authority / the developer, copied to the kgosi **Subject:** [Project] — request for genuine consultation through the kgotla

On behalf of / in support of the community of [place], we note that [project] is proceeding without the genuine consultation the community is owed. We request that a proper **kgotla** be convened, with adequate notice and information, at which the community can be heard and its decision recorded, before any further step is taken. We attach our concerns: [the harm to land, water, and livelihood]. A decision taken without this consultation will be open to challenge.

8B. Challenge / Enquiry to the Land Board

To: the [district] Land Board **Subject:** Land allocation for [project], [location]

We request the full record of the allocation or lease granted to [proponent] for [project] at [location]: the application, the decision, the map, and the consideration of existing customary rights. We are concerned that the allocation [was made without proper process / over land held under customary rights by the community of [place] / without consultation]. We ask the Land Board to review the allocation, and we reserve the right to challenge it. [Attachments: evidence of customary occupation, maps.]

8C. Objection at the Environmental Assessment

To: the Department of Environmental Affairs **Subject:** Objection — environmental impact assessment, [project]

As a community/person affected by [project], we object to its environmental authorisation. Our grounds, with evidence: (1) the EIA [understates/omits] [the water, the grazing, the wildlife, the affected community]; (2) [the project would cut off the community's water / override its customary land use]; (3) [the consultation was inadequate]. We request that the authorisation be **refused or granted only on strict conditions**, and that our objection be formally answered. [Attachments: technical note, maps, imagery.]

8D. Request for Records / Information

To: [the Land Board / the Department of Environmental Affairs / the district authority] **Subject:** Request for records — [project]

We request copies of the following records concerning [project]: the Land Board allocation and file; the environmental impact assessment and authorisation; the consultation (kgotla) record; and the mining or project licence and conditions. Please provide these promptly. If any record is withheld, please give the reason, which we may pursue further.

8E. Letter to a Diamond / Tourism Partner or Investor

To: [the buyer / partner / investor] **Subject:** [Project] — legal and reputational risk

We write regarding your [purchasing from / partnership with / investment in] [company] in connection with [project] at [location]. The project [one-line stake — e.g. "was authorised over community land without genuine consultation and would cut off the community's only water, and is open to constitutional challenge"], and our documented concerns include [the sham consultation, the unlawful allocation, the rights violation]. We ask you to weigh the legal, reputational, and ethical risk, and whether your own [sourcing, human-rights, and sustainability commitments] — and Botswana's own reputation — are consistent with supporting it. We are glad to share our evidence.

8F. Letter to a Minister / MP / the Ntlo ya Dikgosi

To: [the relevant Minister / MP / the House of Chiefs] **Subject:** [Project] — concerns and request

We write about [project] at [location], which affects the community of [place]. Our concern, briefly: [one or two specific grounds — a sham consultation, a cut-off water source, an override of customary land]. Within your responsibility, we ask you to [halt or review the authorisation / ensure a genuine kgotla consultation / uphold the community's customary and constitutional rights]. [If true:] [#] communities and leaders share this concern, and the decision carries real legal risk. We

welcome a meeting and can share our full evidence.

8G. Email to a Reporter (National or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the community / the land]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mine was authorised over a community's land without a real consultation and would cut off its only water in the desert"], with [a decision/hearing] due [date]. It is specific, verified, and it echoes the Central Kalahari case. I can share the full file and — where the community wishes to speak — connect you with community leaders and a lawyer. Could we talk this week?

8H. Letter Instructing / Working with a Public-Interest Lawyer

To: a public-interest lawyer or human-rights organisation **Subject:** [Project] — judicial review and/or constitutional case

We believe the [Land Board allocation / environmental authorisation] for [project], of [date], is unlawful because [it was made without genuine consultation / over customary land / the EIA is deficient / it violates constitutional rights by cutting off water and livelihood]. We attach the allocation, the EIA, the consultation record, and our timeline, and seek your advice on **judicial review** and/or a **constitutional case** in the High Court, the strict time limits, the strongest ground, and — learning from the Central Kalahari — how to secure and then enforce any win.

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — the record of a demanded-but-refused consultation, or a request for records ignored, is itself evidence. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and maps; and route them, where you can, through or with the community's leadership (the kgosi and kgotla), your public-interest lawyers, and your reputational and international allies. The reply — or the silence — becomes part of your record, and in Botswana that record feeds the levers that matter most: the kgotla and the Land Board, the EIA, the independent courts, and the country's reputation — with the hard work of enforcing any win planned for from the start.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Demand a genuine kgotla consultation — first.** If the community was not properly consulted, say so in writing (8A), through the kgosi, and demand a real kgotla before any further step. A decision taken without it is vulnerable — and forcing the consultation can reshape or stall the project cheaply.
- 2. Scrutinise the Land Board allocation.** Get the allocation file (8B) and check whether it was lawful and respected customary rights. A flawed allocation on tribal land is often the strongest single ground.
- 3. Object at the environmental assessment.** One evidenced objection to the Department of Environmental Affairs (8C) puts your case on the record and creates grounds — but the window is limited, so act while it is open.
- 4. Get the documents.** The allocation, the EIA, and the consultation record are the case (8D); the gap between the paper and the reality is usually where the project is weakest.
- 5. Reach public-interest lawyers.** Botswana's independent courts are its strongest lever, and public-interest lawyers and international allies — as for the San — can carry judicial review or a constitutional case for a community with little (8H).
- 6. Reach the partners and the reputation.** A letter to a diamond or tourism partner (8E), and national and international coverage, reach a reputation-conscious state and industry where a local objection does not.
- 7. Tell the story.** A community and its threatened water or land is a powerful story (8G), especially given the Central Kalahari's long shadow.

Do only the first three and you will have challenged the consultation, questioned the allocation, and put your objection on

the record while it counts — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: demand the kgotla, scrutinise the allocation, object to the EIA. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — it has put the consultation and the allocation in question, placed its objection on the record where it counts, and preserved the grounds on which the independent courts can later be asked to act.

WHEN THE SYSTEM IS TILTED

Botswana's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

Botswana is a genuine democracy with honest courts — but the tilt is real. The state's wealth and identity rest on **diamonds**, mined in partnership with global industry, and it guards mining and "development" closely; where a project serves those priorities, official resolve stiffens. The Central Kalahari case is the clearest lesson: the San **won, twice, and still the victory was enforced narrowly** — the government read the 2006 ruling to cover only the named applicants, kept services cut, forced a second case just to restore water, and a **diamond mine was later developed inside the reserve regardless**. The government has long **denied that the San are "Indigenous"** and has **not ratified ILO Convention 169**, so Indigenous-specific claims carry less weight than the constitutional and customary-land arguments that actually won. **Land Boards can allocate land over customary users**, and communities have limited power to stop an allocation the authorities are determined to make. Where this tilt bites, the process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The courts are genuinely independent. Botswana's High Court and Court of Appeal have ruled against the government on fundamental rights — a real remedy, not a formality, and the lever that vindicated the San.

The Constitution protects fundamental rights. Eviction, the cutting-off of water and livelihood, and the override of a community's life engage rights the courts have enforced — whatever the government's development plans.

The land and consultation process can be held to law. A Land Board allocation and a kgotla consultation must follow the rules, and a defect in either is a real, early vulnerability.

Reputation is a genuine pressure point. A state that prizes its standing, and an industry that sells to a values-conscious world, both feel scrutiny a local objection cannot reach.

The record and the community endure. What you document powers the case over years, and an organised community — as the San showed against long odds — outlasts a state betting on its exhaustion.

The Honest Frame

So the honest frame for Botswana is real but demanding, with a hard sting in the tail. Independent courts, the Constitution, the tribal-land and kgotla system, the EIA, and a reputation-conscious state give a community genuine — in places distinctive — power, as the Central Kalahari proved. But the diamond-driven state guards its projects, even landmark court wins are enforced narrowly, Indigenous-specific claims are weak, and Land Boards can allocate over customary users. So diagnose the tilt honestly: lean on the courts, the Constitution, and the land and consultation defects, not on official goodwill; document every defect; reach the reputation and the partners; plan from the start to **enforce** any win, not just to obtain it; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. Against a diamond- or state-backed project, that is often what winning looks like — and, as the San proved, even a hard, partially-enforced win is real, and worth everything it takes.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Botswana ranks among the least corrupt states in Africa, and outright bribery is not the usual problem. But undue influence takes subtler forms — capture by the mining interest, a decision quietly serving a powerful partner, a consultation staged to reach a predetermined end — and where it appears, your strategy shifts: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of undue influence. A **Land Board allocation rushed through** for a well-connected company over an obvious customary claim; a **consultation staged** as a formality with the outcome already decided; an **EIA that ignores an obvious harm** to water or a community; a project **fast-tracked because it serves diamonds or a flagship development**; **services or access cut off** to pressure a community into leaving; and **decisions that consistently favour the powerful partner** over the affected people — each is worth documenting. One anomaly may be a judgment call; a pattern is capture. And because Botswana keeps reasonably good records, the paper trail that reveals a rushed allocation or a sham consultation is often obtainable.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **Land Board, a district decision, an EIA review, or a national development priority** can be bent toward a powerful mining or commercial interest. But Botswana's system has bodies harder to reach that a captured local arrangement cannot control: above all the **independent High Court and Court of Appeal**; the **Office of the Ombudsman**; the **Auditor General**; the **Ntlo ya Dikgosi**; the **African Commission on Human and Peoples' Rights**; and a free press at home and abroad. Undue influence thrives on staying local and quiet; your task is to lift the matter into the light — to the courts and, where needed, to the region and the world.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the rushed allocation, the staged consultation, the whitewashed EIA, the cut-off services — and take it, with evidence, to the bodies above: the High Court through judicial review, the Ombudsman, the Auditor General, the African Commission, and the press. Pair the referral with the consultation demand, the challenge to the allocation, and the reputational pressure, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: a court's attention or a critical report creates a record other bodies must reckon with, and a sham consultation or an unlawful allocation, once proven, can unravel the whole authorisation. And protect yourself: take legal advice, keep the work collective and documented, work through the community's legitimate leadership, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Consult, and Document

Pin down the project, the land, and the stage (Step 1), and root the campaign in the community's leadership through the kgosi and the kgotla (Step 3). Begin the file — get the Land Board allocation, the EIA, and the consultation record (Step 2 and What to Gather). And move fast on what will not wait: **demand a genuine kgotla consultation, scrutinise the allocation, and object to the EIA** while it is open. Reach public-interest lawyers, and note the strict time limits for review. This early phase is cheap, and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate as the facts warrant — challenge the **Land Board allocation**, pursue **judicial review**, and, where fundamental rights are engaged, a **constitutional case** in the High Court (Step 4). Refer any capture to the Ombudsman, the Auditor General, and the African Commission. Press the diamond and tourism partners and the reputation (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others. Do the cheap, time-sensitive things first, because a lapsed consultation or a missed review deadline cannot be recovered. And sequence the moves with your lawyers and the community so they land when they bite hardest — the kgotla demand before the decision hardens, the EIA objection while the window is open, the judicial review inside its short time limit, the constitutional case built on the fullest record of harm — because in Botswana a strong case lost to a lapsed deadline, or a consultation not challenged until too late, is the most avoidable defeat there is.

Later (Months 6-48+): Sustain, Win the Line, Enforce It, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **project stopped or barred**, an **allocation overturned**, a **consultation forced**, a **right vindicated**, conditions imposed. And, learning from the San, **fight to enforce the win**: a court ruling in Botswana can be read narrowly and resisted, so plan the follow-up litigation, the oversight complaints, and the sustained pressure that turn a judgment into a reality on the ground. And judge success honestly. Sometimes it is an outright stop. More often, against a diamond- or state-backed project, it is a project **delayed, conditioned, exposed, or a right won but only partly honoured** — a win you must keep fighting for. That is not a lesser victory; it is what winning usually looks like here, and even the San's hard, contested victory changed history.

The Shape of a Campaign

WEEKS 0-8	Identify Demand the kgotla Scrutinise the allocation Document Object to the EIA
MONTHS 2-24	Grow the movement Arguments Land Board challenge + judicial review + constitutional case Reputation Media
MONTHS 6-48+	Sustain Protect people Win the ruling / stop / conditions Enforce it Redefine the win

FINAL ASSESSMENT

Botswana gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. Botswana has **independent courts** that have ruled against the government on fundamental rights — the High Court and Court of Appeal that twice vindicated the San of the Central Kalahari. Its land is mostly **tribal land** held for communities and allocated by **Land Boards**, so an allocation can be scrutinised and challenged; its living **kgotla** tradition gives consultation real meaning, and a sham consultation a real weakness; and its **environmental assessment** regime offers a formal objection point. A **reputation** the state guards, and the **diamond and tourism partners** who share it, are genuine pressure points, and the **African human-rights system** stands behind it all.

The limits are just as real. The diamond-driven state guards its projects; even landmark court wins are enforced narrowly; the government denies San indigeneity and has not ratified ILO 169; and Land Boards can allocate over customary users. No guide should pretend otherwise. The San won twice and still had to fight for years to make the victory real, while a diamond mine went ahead inside their reserve; that hard truth is the condition of this fight, not its exception.

So the realistic promise is this: **demand a genuine kgotla consultation, scrutinise the Land Board allocation, object to the EIA, build the constitutional and customary-rights case, take a clear illegality to the independent courts, reach the country's reputation and its partners — and run all of it together, through the community's own leadership, planning from the start to enforce whatever you win.** Do that, and even against a diamond- or state-backed project you can force delay, conditions, exposure, an overturned allocation, a right vindicated, and a proponent worn down — and sometimes an outright stop. Do it as the San of the Central Kalahari did, taking one of Africa's most admired governments to its own courts and winning, and you can secure a victory that protects not only your own land and water but sets a precedent others across Botswana will stand on.

A last word on endurance. These fights are won in years, not weeks, and the win must often then be fought into reality — the proponent and the state are counting on your exhaustion. Their advantage is money, diamonds, and patience; yours is legitimacy, the land your community holds, courts that have ruled for people like you before, and the plain fact that you are defending your home and your water while they are merely pursuing a return. Play to that. Keep the file, keep the kgotla united, keep the movement, keep the record and the coverage alive, protect your people, and treat every delay, every overturned allocation, every ruling, every partner that hesitates, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and the Central Kalahari proves they work: a people cut off from their land and their water took the government to court and won — twice — because they organised, endured, and used the law, even against a state that fought them every step and even where the victory had to be wrung out over years. What decides the outcome, in the end, is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped, delayed, and rolled back what looked unstoppable — an eviction declared unlawful, a right to water restored by the highest court, a people's claim to their own ancestral land upheld against a government that fought them to the end. The tools are here, and the strongest of them — independent courts and a

Constitution that protects fundamental rights — have already been made to work by a community with far less than yours; what has ever been missing in the fights that were lost was not the law but the organisation, the endurance, and the will to enforce the win. So can yours.